

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN COLOMBIA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Colombia. Projects with the full backing of the national government and one of the world's largest mining companies still fall when the people who live where they are proposed organise, document the harm, and press every lever the law offers. On **26 March 2017**, the small farming municipality of **Cajamarca, in Tolima**, held a **popular consultation** — a *consulta popular* — on whether mining should be allowed in its territory. The answer was overwhelming: **97.92% voted No — 6,165 votes against, 76 in favour**. With that ballot, a rural community of coffee and arracacha farmers stopped **La Colosa**, the proposed open-pit gold mine of the South African multinational **AngloGold Ashanti** — a deposit of some 28 million ounces that would have been one of the largest gold mines on earth. Within weeks the company suspended all activity on grounds of force majeure. Years later, in November 2023, a court reaffirmed the legality of the consultation. It was a David-and-Goliath victory, and the community organised it themselves.

That victory did not fall from the sky. It was built over years by the **Environmental and Peasant Committee of Cajamarca and Anaime** (*Comité Ambiental y Campesino de Cajamarca y Anaime*), formed in 2011 — through study, marches, water-quality work, alliances with lawyers, and a patient campaign to win a lawful, binding vote. Communities across Colombia have used the same tools to force projects to be refused, halted, redesigned, or abandoned. In 2016 the Constitutional Court recognised the **Atrato River itself as a subject of rights**, ordering the State to clean and protect it. Colombians have used the *tutela*, the *acción popular*, and the Constitutional Court to defend páramos, rivers, and territories again and again. These outcomes were not inevitable. People made them happen.

But most communities do not know HOW to make opposition effective. They attend a single hearing and then go home. They assume the environmental authority "will never approve it," and so they never file a written objection, never request the file, never build the public pressure that changes a decision. They generate a burst of coverage without a plan to sustain it. They gather a crowd and then lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Colombian system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a community that lasts)
STEP 4: LEGAL CHALLENGES	(<i>tutela</i> , <i>acción popular</i> , consultation, the courts)
STEP 5: MEDIA STRATEGY	(make the fight visible, at home and abroad)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; organising sustains the pressure the courts and the press respond to; a lawsuit is a headline and a headline strengthens a lawsuit. The community that runs all five together, each reinforcing the others, is the one that wins. Cajamarca did exactly this: it studied the project and documented the water risk, organised across the veredas, built alliances with lawyers and national networks, pursued the legal route to a binding vote, and made its fight a national story — all at the same time.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Colombia's 1991 Constitution and its courts give communities a set that is unusually favourable to those who know how to use them:

- **The right to a healthy environment and to participate.** Article 79 of the Constitution guarantees every person the

right to a healthy environment and the right to participate in the decisions that may affect it; Article 8 makes protecting the nation's natural riches a duty of the State and of all people. These are not slogans — the courts enforce them.

- **The acción de tutela.** Article 86 gives anyone a fast, lawyer-optional action to protect a fundamental right, decided by a judge in days, not years. It is the most-used and most powerful citizen legal tool in Colombia.
- **The acción popular.** Article 88 and Law 472 of 1998 give any person an action to defend **collective rights** — including the right to a healthy environment, public space, and public health — without having to prove a private injury.
- **Prior consultation (consulta previa).** For Indigenous and Afro-Colombian communities, ILO Convention 169 (adopted through Law 21 of 1991) requires free, prior and informed consultation — and, where a project threatens their survival, their consent — before it may proceed on their territory. Because Indigenous *resguardos* and Afro-Colombian collective territories cover much of the country's remaining forest, river, and highland — precisely the ground destructive projects covet — this consultation right protects a vast share of what is worth defending, and it belongs to the community by law and by the Constitution, not by the grace of any authority or company.
- **Popular consultation (consulta popular).** A municipality's voters can be asked a binding question about their territory's future — the tool Cajamarca used. Its reach over mining was later narrowed by the Constitutional Court (a limit this guide treats honestly below), but as an instrument of participation and pressure it remains real.
- **A Constitutional Court that protects nature.** The Court has closed páramos to mining, recognised rivers as subjects of rights, and repeatedly defended communities and the environment — a body a captured local process cannot reach.
- **Land-use authority and a free press.** Municipalities govern land use through their Territorial Ordering Plans (*POT*); Colombia has a combative independent press and a place in the global conservation imagination — the Amazon, the páramos, the two oceans — that draws international attention and reaches a listed company's investors.

What This Guide Will Not Pretend

It would be dishonest to promise that these levers always prevail. Colombia is, year after year, the **deadliest country in the world for land and environmental defenders**, with more killings recorded than anywhere else; social leaders and environmentalists are threatened, displaced, and murdered, a legacy of armed conflict that has not ended. The national economy leans hard on mining and oil, and successive governments have promoted them. Crucially, in 2018 the Constitutional Court's **SU-095 ruling** held that a *consulta popular* cannot by itself decide whether subsoil mining happens in a municipality, because the subsoil belongs to the nation — narrowing the very tool that won Cajamarca. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the exposure, the withheld consent, and the worn-down proponent that, in a hard fight, are what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single afternoon, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Colombian development project runs a gauntlet of approvals, and each is a place to intervene.

National. Most large or damaging projects need an **environmental licence** (*licencia ambiental*) from the **National Environmental Licensing Authority (ANLA)**, under the environmental-sector rules gathered in Decree 1076 of 2015. Mining projects need a title from the **National Mining Agency (ANM)** and are governed by the Mining Code (Law 685 of 2001); oil and gas run through the Agencia Nacional de Hidrocarburos. The **Ministry of Environment** sets policy. Each licence has conditions, obligations, and a paper trail — and each is only as valid as the process that produced it.

Regional. The **Regional Autonomous Corporations (CARs)** — Cortolima in Tolima, and its counterparts elsewhere — license and oversee smaller projects, manage watersheds and páramos, and inspect. The **department** and its governor and assembly add another layer.

Municipal. The **mayor (alcalde)** and **municipal council (concejo)** govern land use through the **Territorial Ordering Plan (POT)** — a real power over where activities may occur — issue local permits, and can call a *consulta popular*. Even after SU-095, a municipality's land-use and environmental competence, exercised in coordination with national authorities, remains a genuine front.

Ethnic territories. Cutting across all of these: where a project affects an **Indigenous resguardo** or an **Afro-Colombian community's collective land**, **prior consultation** is required, and where the project threatens the community's survival, its consent. In much of rural Colombia this is the decisive gate, protected by the Constitutional Court.

The Journey of a Project

A typical project moves from title or concession, to an environmental-impact study, to the environmental licence and its conditions, to local land-use and permit questions, and — where ethnic territories are involved — through prior consultation, before construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and the widest: an objection during the licensing study, a demand that it address a risk it ignored, a land-use argument before the council, a prior consultation asserted. The later doors — a *tutela* or *acción popular* against a granted licence, a challenge to an operating mine — are narrower but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now. One requirement is worth singling out: an environmental licence granted without the participation the Constitution guarantees, or without a required prior consultation, is legally vulnerable on that ground alone. Two participation windows are worth watching for in particular: the **public hearing (*audiencia pública ambiental*)**, which any community or a set number of citizens can request during licensing, and the **information and objection stages** of the study itself. A project that raced past these, or held them as a formality, has handed you both an argument and an entry point — and the record of who asked to participate, and how they were answered, is among the most useful early documents you can gather.

Follow the Money and the Consent

Behind the permits stand a proponent, its financiers, its buyers, and the officials who signed off. A mining firm may be a subsidiary of a larger, listed multinational — La Colosa was AngloGold Ashanti's, a company answerable to shareholders, lenders, and gold markets that a reputational blow can reach. Trace who owns the proponent, who funds it, who buys its output, and which officials granted its licences. Two questions unlock most Colombian fights: **Was the community's right to participate — or to prior consultation — respected?** and **Who benefits from pretending it was?**

The Overseers## The Legal Foundations

A handful of laws recur in almost every Colombian fight, and knowing which one your project offends tells you which door to use. The **1991 Constitution** anchors everything: Article 79 guarantees a healthy environment and the right to participate in decisions affecting it; Article 80 charges the State with planning the use of natural resources; Article 8 makes protecting the nation's natural riches a duty of all; Article 88 opens the collective *acción popular*; Article 86 gives the *tutela*; Articles 329–330 protect Indigenous territories; and Article 332 vests the subsoil in the State — the provision at the heart of the SU-095 ruling. Beneath the Constitution sit the workhorses. **Law 21 of 1991** brings ILO Convention 169 and prior consultation into force. **Law 99 of 1993** created the environmental system, the Ministry, and the CARs. The **Mining Code** (Law 685 of 2001) governs titles; **Decree 1076 of 2015** gathers the environmental-licensing rules that ANLA and the CARs apply. **Law 472 of 1998** governs the *acción popular*; **Law 1712 of 2014** and the right of petition (Article 23) open the records. **Law 1930 of 2018** protects the páramos. And the **Escazú Agreement** (Law 2273 of 2022) binds the State to protect defenders and guarantee access to information, participation, and justice. You do not need to master them all; you need to find the one your project breaches, and build on it.

Finally, know the bodies that watch the deciders, because they are levers too. The **Procuraduría General**, through its environmental and agrarian delegate, disciplines erring officials and can intervene in defence of collective rights. The **Defensoría del Pueblo** defends human rights and accompanies threatened communities and defenders. The **Contraloría** audits public money. The **courts** — from local judges hearing *tutelas* up through the Consejo de Estado and the Constitutional Court — decide the actions and set the precedents. And the **Escazú Agreement**, which Colombia ratified in 2022, binds the State to protect environmental defenders and guarantee access to information, participation, and justice. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Colombian and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project needs prior consultation on an ethnic territory, whether it sits in or overlaps a páramo or a protected area, whether its environmental licence has a real defect, how firmly the national government backs it, and whether the world is watching. Where consultation is required and the place is treasured, Colombia's levers are real; where the government champions the project and the courts prove unwilling, discount the figures and think in terms of participation, delay, exposure, and outside pressure.

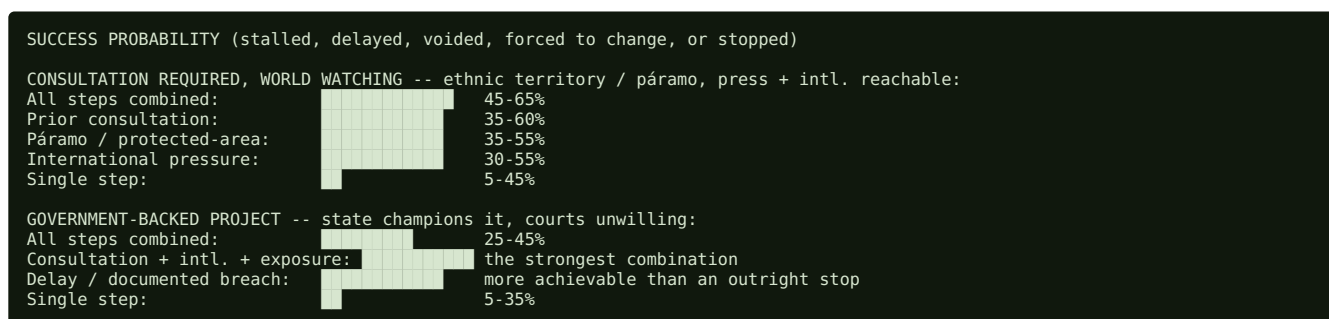
Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Participation in the licensing / public hearing	15-35%	during review	low	On record; conditions or a redo
Prior consultation (ethnic territory)	35-60%	ongoing	low	No lawful consent; project stalled or void
Páramo / protected-area exclusion	35-55%	6-30 months	low-moderate	Project excluded from closed ground
Environmental-licence challenge (tutela / acción popular)	25-45%	6-36 months	low-moderate	Licence suspended or reviewed; delay
Popular consultation (participation & pressure)	20-45%	6-24 months	low-moderate	Political mandate; project stalled (see SU-095)
Procuraduría / Defensoría / Contraloría referral	15-40%	6-24 months	low	Findings; discipline; oversight
International attention / financier & buyer pressure	30-55%	6-36 months	low	Reputational and investor pressure; proponent falters
Documenting a legal violation (illegal work, licence breach)	30-50%	3-18 months	low	Breach exposed; sanction; leverage
Land-use (POT) / municipal action	20-45%	6-24 months	low-moderate	Local restriction; project constrained
All steps combined (consultation required, world watching)	45-65%	12-36 months	low-moderate	Stalled, delayed, voided, or forced to change
All steps combined (government-backed, courts unwilling)	25-45%	12-48 months	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Colombia's real strengths are unusual — a genuine **prior consultation right** on ethnic territories, the fast and powerful **tutela**, the collective **acción popular**, hard **páramo and protected-area closures**, a **Constitutional Court that protects nature**, real **municipal land-use power**, a **combative free press**, and an **international spotlight** on a megadiverse country that reaches a listed company's investors and buyers. Its constraints are a **national government that backs mining and oil**, the **SU-095 limit** on popular consultations over subsoil, slow courts, and grave **danger to defenders**.

A note on cost: participating, documenting, organising, and asserting consultation rights are inexpensive, and public-interest lawyers and networks — the groups that won the Atrato River case among them — have carried community cases. The expenditure that most changes outcomes is committed legal support and the reach of the media campaign — both of which Cajamarca marshalled.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in Colombia are **prior consultation and the courts**, reinforced by páramo and protected-area closures, the tutela and acción popular, municipal land-use power, international pressure, and documented violations. Cajamarca shows the ceiling: a rural community studied the project, documented the water risk, organised for years, allied with lawyers, and won a binding vote that stopped a gold giant. The floor is set by a government that backs extraction, the SU-095 limit on popular consultations, and the danger defenders face. Most Colombian fights sit between them, and the honest lesson is that consultation, the courts, and global attention are powerful, genuine levers — but against a government-backed project the realistic win is often participation forced, delay, exposure, and a proponent worn down, as much as an outright, permanent stop.

Step Importance Ranking (When All Combined)

1. **Prior consultation on ethnic territory** — the consultation, and where survival is at stake the consent, an Indigenous or Afro-Colombian community must give; the country's distinctive and strongest lever, protected by the Constitutional Court.
2. **The Constitutional Court and the closed ground** — the páramo and protected-area exclusions, and the precedents (rivers as rights-bearers, páramos off-limits) that a captured local process cannot reach.
3. **The tutela and the acción popular** — the fast fundamental-rights action and the collective environmental action any Colombian can file, the workhorses of community litigation.
4. **The international spotlight and financier pressure** — the global attention a megadiverse country and a listed company cannot escape, reaching investors and buyers.
5. **Participation, land use, the overseers, and mobilisation** — the licensing objections, the POT, the Procuraduría and Defensoría referrals, and the sustained public pressure that expose and hold.

What Colombian Campaigns Actually Show

A few patterns recur. **Participation is real leverage** — a rural municipality voted, and one of the world's largest gold projects stopped. **Consultation binds** — on ethnic territories, a project needs prior consultation and, where survival is threatened, consent, and the Court enforces it. **Closed ground stays closed** — a páramo is off-limits to mining, and an overlap is provable on a map. **Nature itself can hold rights** — the Court recognised the Atrato River as a subject of rights, opening a new front. **Documented violations bite** — illegal work or a breached licence becomes the spine of a case. **The world can be reached** — a listed multinational in a treasured landscape draws coverage its investors cannot ignore. **But the national government backs extraction**, and the SU-095 ruling curtailed the popular consultation over mining. The through-line: **assert your participation and consultation rights; prove every violation and defect; use the courts and the closed ground; reach the world — and expect a long fight measured in participation, delay, exposure, and a company worn down as much as an outright stop.** And remember that Colombian jurisprudence keeps opening new ground: the recognition of rivers as rights-bearers, the closure of páramos, and the steady enforcement of consultation mean that the legal tools available to a community today are broader than they were a decade ago — a trend that rewards the community willing to reach for them. The through-line: **assert your participation and consultation rights; prove every violation and defect; use the courts and the closed ground; reach the world — and expect a long fight measured in participation, delay, exposure, and a company worn down as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the environmental licence granted without the prior consultation the community's territory required, for a project overlapping a delimited páramo closed to mining" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what permit?** Name the project, the proponent, and the specific approval it needs or holds — the environmental licence and its number and conditions, the mining title, the water concession, the tree-felling permit. A project lives or dies by these instruments, and each has a defect waiting to be found.
2. **What stage is it at?** Title granted? Environmental study under way? Licence granted? Under construction? Operating? The stage dictates the door. If the licence is not yet issued, your objection during the study is cheap and powerful. If it is operating, a breached condition or an illegal act may hand you a *tutela* or an *acción popular*.
3. **Does it affect an ethnic territory — and was prior consultation done?** This is pivotal in much of the country. Identify whether the ground is an Indigenous *resguardo*, an Afro-Colombian collective territory, or an area of their ancestral use, and whether a genuine prior consultation was carried out. A missing or defective consultation is often the strongest lever there is, and the Constitutional Court has voided licences for its absence.
4. **Is the ground closed or specially protected?** Is it inside a delimited **páramo** (closed to mining), a national park or protected area, a *reserva forestal*, a wetland, or a watershed? Closed ground the project cannot lawfully occupy is a case that can win on the documents alone.
5. **Who decides, who benefits, and who is watching?** Which authority and which officials granted the permits (ANLA,

the ANM, the CAR); who owns and funds the proponent and buys its output; which municipality's land use and which community's consultation are engaged; and which press, allies, and international bodies can be reached. This maps your levers and your audiences at once. It is worth writing the answers down as a one-page brief: the project and its permit, the stage, the consultation status, the closed-ground status, and the deciders, beneficiaries, and watchers. That page becomes the shared reference for your whole campaign — the thing a new volunteer, a lawyer, or a reporter reads first — and it keeps everyone aimed at the same decision and the same weak point, instead of scattering effort across grievances that do not move the outcome.

A Worked Example

Suppose a company proposes an open-pit mine on a mountain that feeds a municipality's water, on land partly used by a rural and Afro-Colombian community, and it has applied for an environmental licence.

Working the five questions: the project needs an **environmental licence** (applied for — objections are live), a **mining title** (from the ANM), and, because it affects an ethnic community's territory, **prior consultation**. It is **in the licensing study** — so participation is open. The mountain may feed a **páramo or a protected watershed** the law shields. The **municipality's POT** governs local land use, and the **mayor and council** can act. And the threat to water and to a treasured highland, plus a listed proponent, gives a **media and international** hook.

Within an afternoon you have moved from "we oppose the mine" to a target list: request and scrutinise the licence application and the study; establish whether prior consultation was required and done, and assert it if not; check the páramo, watershed, and protected-area status; file objections while the study is open; engage the council on land use; and prepare the community's water story for the press. That is a campaign, not a complaint.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge, the Procuraduría, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Request the **environmental licence and its conditions, modifications, and obligations**; the **environmental-impact study** and its annexes; the **mining title or concession**; the **prior-consultation record** (the *acta*, the protocolisation); the **water and forest permits**; the **CAR's technical concepts**; and the minutes of any public hearing. Under Colombia's transparency law (Law 1712 of 2014) and the right of petition (Article 23 of the Constitution), these are obtainable, and the gap between what they promise and what is happening on the ground is where cases are won. Cajamarca's community studied exactly such papers — the concession, the studies, the water data — for years before the vote. Read them not only for what they say but for what they assume: an impact study that treats a wet páramo as ordinary grassland, that counts only the mine's footprint and ignores the roads, tailings, and water it will need, or that never mentions the community downstream, is a study with a hole in it — and that hole is your opening. The strongest cases are often built not on a dramatic new fact but on the quiet gap between the official paper and the ground it claims to describe.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual footprint** — cleared land, drill platforms, silted streams, muddied water sources — and geotag it. Log **incidents**: a spring gone dry, a fish kill, sediment in the river, an access road cut without permission. Capture **before-and-after** with your own photos and with freely available satellite imagery, which can show forest loss and encroachment over time. Record **testimony**: elders on the territory's history and use, farmers on the water and the crops, fishers on the river. In a country where water scarcity already bites, a documented threat to a community's water is among the most powerful facts you can hold.

Layer 3: The Defects and the Consultation

Finally, document the failures of process and consultation that turn harm into an unlawful act. Was the **environmental licence granted without the participation the Constitution guarantees**? Was a required **prior consultation skipped, or conducted without the community's legitimate authorities**? Does the footprint **overlap closed ground** — a delimited páramo, a protected area, a watershed? Was the **water concession or the land-use rule**

ignored? Each defect is a separate ground — for an objection, a *tutela*, an *acción popular*, or a referral — and together they make a case that is hard to wave away. This is the layer that most often decides Colombian fights, because here a project that looked licensed is revealed to be proceeding without the participation, the consultation, or the clearance the law demands. As you work, keep a running list of the specific defects, because each is a separate lever: an **environmental licence granted without genuine participation**; a **prior consultation skipped or run with a hand-picked few**; a **footprint overlapping a delimited páramo, a protected area, or a watershed**; a **water concession or land-use rule ignored**; a **licence condition breached in practice**; and a **required permit never obtained**. A project rarely has just one of these, and it is the accumulation — a páramo overlap and a skipped consultation and a denied participation together — that makes a case hard to answer.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Colombian cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Permits and Their Paper Trail

- **The environmental licence (*licencia ambiental*)**, with its conditions, modifications, and compliance obligations. Held by **ANLA** (large projects) or the **CAR** (regional projects). The licence's conditions and obligations are frequently where a project is vulnerable — a licence operated in breach of a condition is an enforcement case.
- **The environmental-impact study (*EIA*)** and its annexes, and the record of any public hearing (*audiencia pública ambiental*). Also with ANLA or the CAR. Read it for what it omits or understates — the water risk, the páramo overlap, the affected community, the cumulative effect.
- **The mining title or concession**, from the **ANM**, and any environmental concept from the CAR. Check the área and whether it overlaps closed ground.
- **The prior-consultation record** — the *acta de consulta previa*, the *protocolización*, and the Ministry of the Interior's certification of whether ethnic communities are present. This reveals whether consultation was required, done, and done with the legitimate authorities. the Ministry of the Interior's certification of whether ethnic communities are present. This reveals whether consultation was required, done, and done with the legitimate authorities. Note that this certification is itself frequently contested: proponents have obtained certifications that no ethnic communities are present in areas where they plainly are, precisely to avoid the consultation obligation, and overturning such a certification — with your own evidence of the community's presence and use — can reopen the whole approval.
- **Local instruments** — the municipal **POT** and any council *acuerdo* or *consulta popular* result. From the *alcaldía* and the *concejo*. A land-use rule or a resolution against the project is powerful.
- **Water and forest permits**, from the CAR — a *concesión de aguas*, an *aprovechamiento forestal*. Their absence or breach is a live ground.

How to Get Them

Most of these are public. Use the **right of petition** (Article 23 of the Constitution) and the **transparency law** (Law 1712 of 2014): a written request naming the documents obliges a timely answer (generally fifteen working days for a petition of information). Request at ANLA, the CAR, the ANM, the *alcaldía*, and the Ministry of the Interior. When an authority stalls, a follow-up citing the right of petition usually moves it; persistent refusal is itself evidence of a problem, and can be forced by a *tutela*, since the right of petition is a fundamental right. Move early: the licensing study and any *audiencia pública* have real windows, and an objection filed while a window is open carries far more weight — and preserves far more of your rights — than the same point raised after a decision is made.

The Ground Evidence

- **Dated, geotagged photographs and video** of the footprint, the clearing, the discharge, the drying water source.
- **Satellite before-and-after** from freely available imagery, to show forest loss, encroachment into closed ground, or the true extent of operations.
- **Maps** overlaying the project footprint on the *resguardo* or collective territory, the delimited páramo, the protected area, and the watershed — a single map showing a mine inside a páramo is worth pages of argument. Community mapping is within reach: with free imagery and open tools, or a partner university or NGO, you can produce the image a judge, a reporter, and a financier all understand at a glance, and a participatory map made with the community doubles as evidence of its territory and use.
- **Sworn statements** from elders, farmers, fishers, and community authorities, on use, history, consultation, and harm.
- **Independent technical readings** — a water sample, a hydrologist's or biologist's note. Community water-monitoring

and university partners can supply these cheaply, and in Cajamarca community water science was central. Gather it early and gather it dated, because timing decides its weight: the licensing study and any *audiencia pública* have real windows, and evidence entered while a window is open shapes the decision, while the same evidence produced afterward only supports a challenge to a decision already made.

Organise It So It Persuades

Keep a **master timeline** of every permit date, consultation, incident, objection, and deadline — the spine of any action. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a reporter, and a judge all see the same clear picture fast. It also guards against the campaign's own worst enemy — a fact half-remembered, a date misstated, a claim that cannot be sourced when the other side challenges it. In a fight this long, the community with the better-kept file is very often the community that prevails, because it is the one whose every assertion holds when tested.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT LAST

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months a fight takes. This is the step communities most often get wrong, and Cajamarca's victory rests on getting it right: vereda by vereda, over six years, with a farmers' committee at the centre.

Phase 1: The Core

Start with a small, committed core — five to fifteen people who will carry the work. Where an ethnic territory is involved, include the **legitimate community authorities** — the *cabildo*, the *consejo comunitario* — from the start, because their consultation and their voice are the campaign's legal and moral spine; a captured or bypassed authority is the proponent's favourite tool, and an authentic one is your strongest asset. Assign roles: documentation, legal liaison, media, community liaison, and coordination. Agree on the goal — refusal, a suspension, a redesign, a binding vote — and on what you will and will not accept.

Phase 2: The Coalition

Widen deliberately. Map who shares the stake — farmers' and fishers' associations, the *juntas de acción comunal*, the parish and church networks, teachers and health workers, students, water-user associations, and the diaspora. Reach the **allies with capacity**: public-interest lawyers and legal-aid groups, national environmental networks, Indigenous and Afro-Colombian organisations, and academics who can supply technical readings. Cajamarca's coalition ran from a local peasant committee to national and international NGOs and lawyers — each bringing something the others could not.

A worked coalition example. Facing a mine that threatens a watershed, a farmers' committee, an Afro-Colombian council, the parish, and a handful of teachers form a core; they bring in a legal-aid lawyer and a hydrologist from a nearby university; the *junta de acción comunal* mobilises the veredas; a national environmental network amplifies the story. No single group could have carried it; together they cover documentation, law, science, faith, local legitimacy, and reach — the full spread a winning campaign needs.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — an *acuerdo* passed, a document pried loose, a hearing attended in force. Rotate the exhausting roles. And protect people, because Colombia is the world's deadliest country for defenders: keep leadership collective and visible rather than resting the campaign on one exposed individual; document every threat, surveillance, or act of stigmatisation, which protects the person and becomes evidence for the Defensoría, the Procuraduría, or a court; build outside links to national networks, the Church, and international allies; and take threats seriously and report them at once. A campaign that protects its people is a campaign that can last — and lasting is how these fights are won.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for hearings and consultations. Gather signatures and *junta* and

council resolutions. Hold peaceful, well-documented actions — marches, water forums, the patient signature drive that put Cajamarca's vote on the ballot. The point is not spectacle; it is to demonstrate, to officials and to the press, that the opposition is broad, rooted, and not going away. Throughout, guard the authenticity of your leadership and your consultation, because it is exactly what a proponent will try to fake: insist that ethnic communities speak through their legitimate, customary authorities and their own decision-making, and put that legitimacy on the record. A campaign whose leadership is unmistakably the community's own — its *cabildo*, its *consejo comunitario*, its *junta* — is one that neither a company nor an authority can quietly substitute with a more agreeable stand-in of its choosing; and that authenticity, documented from the start, becomes decisive when the consultation records are later examined.

STEP 4: LEGAL CHALLENGES — THE TUTELA, THE ACCIÓN POPULAR, AND CONSULTATION

Colombian law gives communities an unusually strong legal arsenal, and you do not need to win a final ruling to win with the courts: a filing freezes a project, forces disclosure, and creates leverage and headlines. Engage a lawyer or a legal-aid group early — but understand the tools yourself.

Prior Consultation (Consulta Previa)

For Indigenous and Afro-Colombian communities, **prior consultation** under ILO Convention 169 (Law 21 of 1991) is often the most powerful lever. No project may lawfully proceed on their territory — or where it directly and specifically affects them — without a genuine, good-faith prior consultation; and where the project threatens the community's physical or cultural survival, the Constitutional Court has required their **consent**, not merely their consultation. A consultation skipped, or run with a hand-picked few instead of the legitimate authorities, is a fatal defect, and the Court has suspended and voided licences on that ground. Assert it early and formally.

The Acción de Tutela

The **acción de tutela** (Article 86) is the fast, powerful protection of a fundamental right — decided by any judge within days, filed without a lawyer if need be. Where a project violates the right to prior consultation, to participation, to water, to health, or to a healthy environment tied to survival, a *tutela* can order the activity suspended while the right is protected. It is Colombia's most-used citizen legal tool, and its speed is its power: it can stop work now, not years from now. A *tutela* is decided by the first judge who receives it within ten days, and it can be reviewed on appeal and, ultimately, selected for review by the Constitutional Court itself — which is how many of the country's landmark environmental rulings began, as a single citizen's *tutela*. The judge may order the authority or the company to act or to refrain, and may grant an urgent provisional measure to suspend the activity while the case is decided. The *acción popular*, though less immediate, carries its own strengths: the judge may order studies, appoint a committee to verify compliance, and keep the case open to supervise the remedy until the collective right is truly restored.

The Acción Popular

The **acción popular** (Article 88 and Law 472 of 1998) protects **collective rights** — among them the right to a healthy environment, public health, and the rational use of natural resources — and any person may file it, without proving a private injury. It can obtain orders to stop, prevent, or repair environmental harm, and it is the natural vehicle for a project that threatens a watershed, a páramo, or a community's shared environment. The lawyers who won the Atrato River case used exactly this family of tools.

Popular Consultation — and Its Real Limit

The **popular consultation (consulta popular)** lets a municipality's voters answer a binding question about their territory — the instrument Cajamarca used in 2017 to stop La Colosa. You must understand its limit honestly. In 2018, in ruling **SU-095**, the Constitutional Court held that a *consulta popular* **cannot by itself decide whether subsoil mining or oil activity happens** in a municipality, because the subsoil belongs to the nation and that competence lies principally with the national government; it called on Congress to create mechanisms to coordinate national and local decisions. So a consultation can no longer simply veto a mine on its own. It remains valuable — as an instrument of participation, political mandate, and pressure, and for questions genuinely within municipal competence such as land use — but plan it with counsel, and do not stake the whole fight on a tool the Court has narrowed. Pair it with consultation, the tutela, the acción popular, and the closed-ground arguments, which the SU-095 limit does not touch.

The Courts and the Precedents

Environmental cases run from local judges (for *tutelas*) up through the **Consejo de Estado** and the **Constitutional Court**, whose precedents are powerful allies: rivers recognised as **subjects of rights** (the Atrato, in ruling T-622 of 2016), **páramos closed to mining** (ruling C-035 of 2016), and prior consultation repeatedly enforced. Get counsel early: legal-aid groups, university legal clinics (*consultorios jurídicos*), and national environmental-law organisations — including those who won the Atrato case — have carried community cases and can advise on standing, the right forum, and the safety risks before you file. A lawyer contacted while objections are still live and evidence is fresh is worth far more than one contacted after the machinery arrives.

Rights of Nature and the Defender's Shield

Two further developments strengthen a Colombian community's hand. First, the Constitutional Court's recognition of the **Atrato River as a subject of rights** (ruling T-622 of 2016) opened a genuine new front: courts have since extended similar recognition to other rivers and ecosystems, so a river, a páramo, or a forest at the centre of your fight may itself be argued to hold rights the State must guarantee — a powerful framing for an *acción popular* or a *tutela*. Second, the **Escazú Agreement**, in force for Colombia since 2022, obliges the State to guarantee access to environmental information, meaningful participation, and access to justice, and — uniquely among international treaties — to prevent, investigate, and punish attacks on environmental defenders. Invoke it: in filings, in referrals to the Defensoría, and in international advocacy, Escazú turns the protection of your people and your right to participate from a plea into a binding legal obligation the State has accepted. Beyond the *tutela* and the *acción popular*, two further routes are worth knowing: the challenge to the environmental licence itself before the administrative courts and the **Consejo de Estado**, which can suspend and annul a licence granted in breach of the rules, and the **acción de cumplimiento**, which forces an authority to comply with a law or regulation it is ignoring. Each has its moment; a good legal-aid partner will tell you which fits your facts, and often the mere filing — with a well-built record behind it — is enough to stall the machinery and bring the proponent to the table.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, the Procuraduría, a journalist, an international conservation group, an investor, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a licence was granted for a mine overlapping a delimited páramo, on the territory of an Afro-Colombian community that was never consulted. That one fact becomes:

- **A legal argument:** the licence breaches the páramo's closure to mining (ruling C-035 of 2016) and the community's right to prior consultation (ILO 169) — grounds for a *tutela*, an *acción popular*, and the suspension of the licence.
- **A participation argument:** the community's constitutional right to take part in the decisions that affect it was denied.
- **A rights-and-dignity argument:** a people was bypassed and its water and territory put at risk, in violation of the survival protections the Constitution affords it.
- **An international argument:** a listed multinational mining a protected highland in a megadiverse country, without consulting the community — a story that reaches global media, conservation groups, and the company's financiers and buyers.
- **A financier-and-buyer argument:** a company that breaks the host country's laws and mines a páramo is a legal, reputational, and supply-chain risk to those who fund and buy from it.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Colombia the consultation-and-páramo argument, tied to a treasured highland, is often the one that moves both the courts and the world. Keep the arguments anchored to the same documented facts, so that a claim made to a reporter can be backed in a sworn statement and a claim made to the court can be spoken plainly to the community; consistency across audiences is itself persuasive. When the legal filing, the press statement, the referral, and the community's own account all rest on the identical, verifiable record, the proponent's contrary story starts to look like the invention it is — and a judge, a journalist, and a financier, comparing your account with the company's, will notice which one the documents support.

Match the Argument to the Audience

The courts and the Procuraduría want the breach framed precisely against the specific rule — C-035 on páramos, ILO 169 on consultation, the licence's conditions — with the documents that prove it and the timeline that dates it.

Local officials respond to their own community's clear voice and to legal and political risk — the *acuerdo*, the land-use argument, the liability of backing an unlawful project.

Journalists need a specific, verified, human story with a hook — a named community, a threatened water source, a documented violation, an imminent decision.

International allies, financiers, and buyers respond to reputational and legal exposure — an illegal operation in a globally significant ecosystem, tied to a named, listed company they are connected to.

The community itself needs to see that the fight is winnable and shared — the small wins, the allies gained, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of approval, reaches officials and financiers your letters cannot, protects defenders by making them visible, and can turn a local fight into a national or international cause. In Colombia, with its combative press and its globally treasured ecosystems, this lever is unusually strong.

Build the Story

Reporters need specifics: a named place and people, a dated and documented violation, a clear stake, and a live decision or deadline. "A mine threatens our mountain" is not a story; "a listed multinational holds a licence to mine an open pit in a delimited páramo that supplies a town's water, without consulting the community, and a court will rule next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a farmer, a mother, a community authority — and an expert.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the story is felt and officials read it. Then **national outlets** — the newspapers, broadcasters, and the strong Colombian online investigative press — which carry political weight. Then, for a project touching a globally significant place or a listed or foreign company, **international media and specialist environmental outlets**, which reach financiers and buyers. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money**: a listed proponent depends on shareholders, lenders, and buyers, and coverage in international and financial outlets — and briefings to responsible-investment bodies — can reach a company where domestic politics cannot, turning its own backers into a source of pressure on it. Coverage does a second job in Colombia that matters as much: it protects people. A community leader whose name and face are known to the national press, whose fight is followed abroad, and whose threats have been reported is harder to disappear quietly than one who works in obscurity. Visibility, deployed carefully, is not only a lever against the project; it is a shield for the people carrying the fight.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the filing, the hearing, the new document, the community action — so there is always a next hook, and build your own record (a simple page, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. And in a country where defenders are killed, weigh how and whom you expose: centre the collective and the documented facts rather than isolated individuals, coordinate with your legal and community leads, and never publish what you cannot stand behind. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act. Each does

double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection During the Licensing Process

To: ANLA [or the relevant CAR] **Subject:** Objection (*intervención*) — [project], environmental licence [file no.]

As a person affected by [project] at [location], I intervene and object during the environmental-licensing process. My grounds, with evidence: (1) the environmental-impact study [omits / understates] [effect — e.g. the risk to the páramo that supplies our water]; (2) the affected community was not genuinely allowed to participate, contrary to Article 79 of the Constitution; (3) [the project overlaps a delimited páramo / a protected area / the territory of a community that was not consulted]. I request that the licence be DENIED, or that [strict conditions and genuine participation] be required, and that this objection be entered on the record. [Attachments.]

8B. Right of Petition — Request for Information

To: [ANLA / the CAR / the ANM / the *alcaldía* / the Ministry of the Interior] **Subject:** Right of petition (Art. 23) — information on [project]

Under Article 23 of the Constitution and Law 1712 of 2014, I respectfully request copies of: the environmental licence and its conditions, modifications, and obligations; the environmental-impact study and the record of the public hearing; [the mining title]; [the prior-consultation record and the certification of ethnic presence]; [the POT provisions and any *acuerdo*]. As a member of an affected community, I ask that these be provided within the legal term.

8C. Statement Asserting the Right to Prior Consultation

To: the Ministry of the Interior (Directorate of Prior Consultation) [and ANLA / the company] **Subject:** [Project] — prior consultation required and not carried out

[Project] affects the territory and the rights of [Indigenous *resguardo* / Afro-Colombian community], through its legitimate authorities [the *cabildo* / the *consejo comunitario*]. Under ILO Convention 169 (Law 21 of 1991) and the jurisprudence of the Constitutional Court, our free, prior and informed consultation — and, given the threat to our survival, our consent — is required before this project may proceed. No genuine consultation has taken place. We require that all activity cease until a lawful consultation with our legitimate authorities is carried out, and that no licence issue in its absence. [Signed by the legitimate authorities.]

8D. Acción de Tutela / Acción Popular (via counsel)

To: the competent judge, via counsel **Subject:** [Tutela / acción popular] — [project]

As [affected residents / an ethnic community / any citizen for the collective right], we bring [an *acción de tutela* to protect our fundamental rights to prior consultation, participation, water, and a healthy environment tied to our survival / an *acción popular* to protect the collective right to a healthy environment], against [the authority and the company], on the grounds that [the licence was granted without prior consultation / the project overlaps a páramo closed to mining under ruling C-035 of 2016 / the community's participation was denied]. We seek [the suspension of the activity and of the licence, and measures to prevent and repair the harm]. [Grounds, timeline, and evidence attached.]

8E. Referral to the Procuraduría / Defensoría / Contraloría

To: the Procuraduría [Delegate for Environmental and Agrarian Affairs] [or the Defensoría del Pueblo / the Contraloría] **Subject:** Referral — [irregularity / harm / threat], [project], [location]

We bring to your attention [the failures and the harm] connected with [project]: [sourced facts — a licence granted over unaddressed objections, a consultation skipped, a páramo overlap, officials who acted or failed to act, threats against community members]. We request that you [investigate and, where warranted, discipline the responsible officials / intervene in defence of the collective right / protect the threatened community / audit the public funds involved], and we attach the documentation.

8F. Letter to the Mayor or the Council

To: [the Mayor (*alcalde*) / the Municipal Council (*concejo*)] **Subject:** [Land use / a resolution / a hearing] — [project]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to our water, an overlap with closed ground, a consultation skipped]. Within your competence over land use and the POT, we ask you to [regulate the land use accordingly / hold a public hearing / pass a resolution of concern and address the national authorities]. [If true:] [#] residents, [#] *juntas* and organisations share this concern, and the matter carries legal risk. We welcome a meeting and can share our full evidence.

8G. Coalition Outreach (to a legal-aid group or national/international ally)

To: [a public-interest law group / a national environmental network / an international conservation organisation] **Subject:** [Project] — would you support our community's case?

We are a community group [and ethnic community] in [place] facing [project], which [one-line stake — e.g. "would mine a páramo that gives us our water, on our territory, without the consultation the law requires"]. We are getting in touch because [your organisation has carried community environmental cases here / your reach can carry this story to those who fund and buy from the company]. We are not asking you to adopt our whole campaign — only to consider [taking or advising on a case / amplifying our fight]. We have documented evidence and community backing, and can send a brief and arrange a call.

8H. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the páramo / the community]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a listed multinational holds a licence to mine an open pit in a delimited páramo that supplies our town's water, without consulting our community"], and [a decision / hearing] is due [date]. It is specific, verified, and it concerns a place of national and global significance. I can share the full file and connect you with affected community members and [an expert]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the licence dates, the consultation records, and any court or comment deadlines. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation; and route them, where you can, through or with the legitimate community authorities, your legal-aid partner, and your allies. The reply — or the silence — becomes part of your record, and in Colombia that record feeds the levers that matter most: consultation, the closed ground, the courts, and the spotlight.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. Establish whether consultation was required and done — today. If the project affects an Indigenous *resguardo* or an Afro-Colombian territory, find out whether a genuine prior consultation was carried out with the legitimate authorities. If it was not, you may hold the strongest and simplest lever there is.

2. Assert the right to consultation, formally and in writing. One clear statement from the legitimate authorities (8C) that consultation is required and was not done puts the project's legality in doubt and creates a powerful record — and can compel its suspension.

3. Check whether the ground is closed. Establish whether the footprint sits in a delimited páramo, a protected area, or a watershed. A project on closed ground is defective on the documents, and a single overlay map can prove it.

4. Request the licence and the file. One right-of-petition letter (8B) forces out the environmental licence, the study, and the conditions — often revealing the breached condition, the missing participation, or the páramo overlap that becomes your case.

5. File a tutela if a fundamental right is being violated. The *acción de tutela* (8D) is fast and needs no lawyer in a pinch; where consultation, participation, water, or a healthy environment tied to survival is at stake, it can suspend the activity within days.

6. Tell the world. A threat to a páramo, a river, or an ethnic territory reaches the national and international press; a single accurate tip (8H) can turn a local fight into a cause and reach the company's financiers and buyers.

7. Refer it to the Procuraduría or the Defensoría. A referral (8E) brings oversight — and, if defenders are threatened, protection — without the cost of a full case.

Do only the first three and you will have cast doubt on the project's legality, asserted your consultation right, and shown the ground is closed — the exact combination that has most tested Colombian projects. Then come back and read the rest.

WHEN THE SYSTEM IS TILTED

Colombia's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs toward mining and oil, on which the national economy and the public budget lean, and which successive governments have promoted. The **environmental authorities** have granted and defended licences over community objections. The **SU-095 ruling of 2018** narrowed the *consulta popular*, holding that a municipality cannot by itself vote to ban subsoil mining — removing, for now, a tool communities had used to great effect, and leaving the coordination of national and local decisions to a Congress that has been slow to act. **Prior consultation is sometimes captured** — run with a hand-picked few, or reduced to a formality. Courts move slowly, and orders can be appealed. And most gravely, **defenders are in extreme danger**: Colombia records more killings of land and environmental defenders than any other country, a legacy of an armed conflict that persists in many rural areas where these projects are proposed. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

Prior consultation is a genuine, court-enforced right. On ethnic territories, a project needs consultation and, where survival is threatened, consent — a right the Constitutional Court has upheld against the government and companies alike. This is your firmest and most distinctive ground, and SU-095 did not touch it.

Closed ground stays closed. A delimited páramo is off-limits to mining (ruling C-035 of 2016), and a protected area or a river recognised as a subject of rights (the Atrato, T-622 of 2016) walls out destructive use regardless of the proponent's connections — and an overlap is provable on a map.

The tutela and the acción popular reach any judge. The fast fundamental-rights action and the collective environmental action put a community before a court quickly, and the tutela can suspend work now. And a filing does not have to end in a final victory to work: even where a court ultimately hesitates, the *tutela*, the provisional measure, and the disclosure they force buy time, expose the record, and shift the political and reputational calculus — which is often what turns a determined proponent, or a wavering financier, away.

Municipal land-use power survives SU-095. A municipality still governs where activities may occur through its POT, exercised in coordination with national authorities — a real front the ruling narrowed but did not erase.

The press, the overseers, and the world cannot be switched off. A combative domestic media, the Procuraduría and Defensoría, and intense international interest in Colombia's ecosystems reach past domestic politics to the company's financiers and buyers.

The Honest Frame

So the honest frame for Colombia is real but demanding. Prior consultation, closed ground, the tutela and acción popular, a nature-protecting Constitutional Court, municipal land-use power, a free press, and the international spotlight give a community genuine power, as Cajamarca proved by studying, organising, allying, and winning a binding vote that stopped a gold giant. But the national government backs extraction, SU-095 curtailed the popular consultation, consultation can be captured, courts are slow, and defenders face the world's gravest danger. So diagnose the tilt honestly: lean on your consultation rights, the closed ground, and the courts, not on a favourable authority or the popular consultation alone; document every violation; protect your people above all and report threats at once; and think in terms of participation forced, delay, exposure, and a proponent worn down as much as an outright, permanent stop. In a government-backed

fight, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being paid, pressured, or protected. Corruption changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. A **prior consultation that produces agreement against the community's evident will** — run with outsiders, signed by a handful, dissenters excluded, sudden payments — is a classic red flag. A **licence granted or an obligation waived in the teeth of the evidence**, over strong documented objections and without addressing them, suggests more than error. **Officials with undisclosed interests** in the proponent, **permits issued at unusual speed**, **technical concepts that contradict the visible ground**, and **enforcement that never comes** despite obvious violations all point the same way. And in Colombia, **threats and stigmatisation aimed at the very leaders who are asking questions** are themselves a signature of something rotten. One anomaly may be incompetence; a pattern is capture. A useful test is to lay your timeline beside the official one: when approvals cluster suspiciously close to a change of official, when an inspection that should have followed a complaint never happened, when a study's damning early draft is softened in its final version, or when the same names recur on both sides of a decision, the pattern tells you more than any single document. Gather these threads quietly before you act, because a captured actor who senses exposure will move to bury the record.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where capture reaches. A **local office, a hand-picked consultation, or a single official** can be bought or pressured. But the Colombian system has bodies that are harder to capture and that a corrupt local arrangement cannot easily reach: the **Procuraduría**, which disciplines officials; the **Contraloría**, which follows the public money; the **Defensoría**, which defends rights and defenders; the **courts**, up to a Constitutional Court that has closed páramos and recognised rivers as rights-bearers; and the **free press**. Corruption thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured official. Instead, **document the anomaly precisely** — the dates, the signatures, the payments, the missing inspections — and refer it, with evidence, to the bodies above (8E): the Procuraduría for the officials, the Contraloría for the money, the Defensoría for the rights and the threatened, and the press for the daylight. Pair the referral with the environmental case, so the corruption and the harm are exposed together. Remember that exposure has its own momentum: a Procuraduría investigation or a Contraloría finding creates a record other bodies must reckon with, a disciplined official cannot keep pushing the project, and a consultation shown to be captured collapses the legal ground the approval stood on. You are not asking a captured node to change its mind; you are removing the pieces the project depends on, one clean forum at a time, and letting the daylight do the rest. In Colombia, where the Procuraduría, the Contraloría, and the courts have real independence, a well-documented referral can move faster and reach higher than a captured local office ever expects. And protect yourself above all — in Colombia, exposing corruption can be dangerous, so coordinate with your legal and community leads, involve the Defensoría, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Document, and Assert

Pin down the project, the permit, and the stage (Step 1). Begin the file — request the licence, the study, the consultation record, the zoning (Step 2 and What to Gather). Form the core and bring in the legitimate community authorities (Step 3). And move fast on the things that will not wait: **assert the right to prior consultation** in writing, and **file objections**

while the licensing study is open. Reach a legal-aid group now, before deadlines close. This early phase is cheap, and it sets up everything else.

Middle (Months 2-12): Escalate on Every Front

Widen the coalition and show strength (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — a *tutela* to suspend the activity, an *acción popular* for the collective right, a demand for lawful consultation (Step 4). Refer the officials and the money to the Procuraduría and the Contraloría, and any threats to the Defensoría (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others: a filing is a headline, a headline is pressure, pressure moves an official, an official's document strengthens the filing. The sequence is not rigid, but do the cheap, time-sensitive things first, because a missed comment period or a lost deadline cannot be recovered. A campaign that front-loads the irreversible steps and runs the rest in parallel gets far more from the same effort than one that takes them one at a time; and it keeps the media and the coalition growing throughout, so that when a legal or official decision comes, there is a watching public to give it weight.

Later (Months 6-36+): Sustain, and Redefine the Win

Sustain the coalition against burnout; protect your people; keep the record and the coverage alive. And judge success honestly. Sometimes it is an outright, permanent stop — a denied licence, a project abandoned, a binding vote upheld, as at Cajamarca. More often, in a government-backed fight, it is a project **stalled for years, shrunk, re-sited, saddled with conditions, or so delayed and exposed that the proponent walks away** — and a consultation right vindicated and a precedent that protects the next community. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Document Assert consultation Object Get counsel
MONTHS 2-12	Coalition Arguments Tutela / acción popular Referrals Media
MONTHS 6-36+	Sustain Protect people Escalate Redefine and secure the win

FINAL ASSESSMENT

Colombia gives communities a genuinely powerful set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and, in places, distinctive. A community holds a **court-enforced right to prior consultation** on its ethnic territory — and, where its survival is threatened, to consent. It stands on **closed ground** — páramos shut to mining, protected areas, a river recognised as a subject of rights. It can reach **any judge fast** through the **tutela**, and defend the shared environment through the **acción popular**, with a **Constitutional Court** that has repeatedly protected nature on its side. It retains **municipal land-use power** even after SU-095. And it can summon **a combative press and an international spotlight** on a megadiverse country, reaching the financiers and buyers a company depends on. Cajamarca used these — study, organisation, alliance, and a lawful vote — and stopped one of the world's largest gold projects.

The limits are just as real. The national government backs mining and oil, the environmental authorities favour proponents, the SU-095 ruling narrowed the popular consultation, consultation can be captured, courts are slow — and, most soberingly, Colombia is the deadliest country in the world in which to defend land and the environment. No guide should pretend otherwise. The threats that shadowed Cajamarca's leaders were not incidental; they are the condition of this fight.

So the realistic promise is this: **organise early, assert your consultation rights, prove every defect, use the tutela and the closed ground, reach the courts and the world — and run all of it together, protecting your people above all.** Do that, and even against a government-backed project you can force delay, exposure, conditions, a consultation vindicated, and a proponent worn down — and sometimes an outright stop. Do it as Cajamarca did, over years and across veredas, with a farmers' committee at the centre and public-interest lawyers at your side, and you can win a landmark that protects not only your own water and mountain but the next community's too.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, numbers, and the fact that you are defending your home while it is merely pursuing a return. Play to that. Keep the file, keep the coalition, keep the record and the coverage alive, protect

your people, and treat every delay, every disclosure, every referral, and every headline as a brick in a wall that grows too high and too costly for the project to climb. The community that will not go away, and that keeps the fight lawful, documented, and visible, is the one that most often prevails.

The tools are here. The Constitution and the courts are on your side more than you may think. Above all, remember what the Constitution says plainly and the courts have made real: participation in the decisions that affect your environment is not a favour the State grants but a **right it owes you**, and consultation on your territory is not a courtesy but an obligation. A project that denied you those is already on weak ground, whatever its permits say. What decides the outcome is method, endurance, and courage — and those you supply. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable. So can yours.